

22STCV02911 22STCV02911

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The Court has concluded, on its own motion, that a discovery referee should be appointed pursuant to Code of Civil Procedure section 639 subdivision (a)(5) to assist the Court in handling all pending and future discovery motions in this action. The Court has reached this conclusion over the Plaintiff's opposition. Defendants have consented to the appointment of a discovery referee.

Taggares v. Superior Court (1998) 62 Cal.App.4th 94, 105, sets forth the following factors a court must consider in deciding whether to appoint a discovery referee over the objection of a party or parties: "(1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming." Application of all four of those factors here supports the appointment of a discovery referee in this case. This is not a case in which the Court is passing off to a discovery referee "routine, pro forma uncomplicated matters." (Id. at p. 104.) The discovery motions to date in this case have been anything but that. The same is true of the pending discovery motions.

The Court is appointing retired Judge Mitchell Beckloff to serve as the discovery referee in this case. The Court directs counsel for Defendants to file and serve a proposed order appointing Judge Beckloff. The Court is setting a hearing for July 6, 2026 at 8:30 regarding entry of that order.

In light of the Court's decision to appoint Judge Beckloff as the discovery referee, the Court is declining to rule on the Plaintiff's discovery motion on calendar to today, which seeks to quash deposition subpoenas Defendants issued to lawyers for Plaintiff. Judge Beckloff shall hear that motion in the first instance and make a recommendation to the Court on the disposition of the motion pursuant to Code of Civil Procedure section 639, subdivision (c). Also on calendar today is Defendants' ex parte application to advance a hearing on another discovery motion -- specifically, a motion to compel compliance with a prior discovery order of the Court. The Court is denying the ex parte application without prejudice. The motion to compel compliance that Defendants seek to advance through their ex parte application shall be heard by Judge Beckloff.

Appointment of a discovery referee may cause a delay in the start of the trial in this case, which is set to begin on February 8, 2026. The Court will address the status of Judge Beckloff's handling of the discovery motions and trial readiness at the further status conference, which is on calendar for October 8, 2026,